

March 2, 2026

Office of Governor Abigail Spanberger
P.O. Box 1475
Richmond, VA 23218

RE: VETO REQUEST – Virginia SB 338

Dear Governor Spanberger:

On behalf of the advertising industry, we write to request that you veto SB 338.¹ SB 338 would amend the Virginia Consumer Data Protection Act (“VCDPA”) to include an explicit prohibition on controllers from “selling” or offering to “sell” precise geolocation data.² If enacted, SB 338 would take an overly broad and blunt approach to regulating location data; any specific concerns can be addressed through more tailored legislation that protects Virginians without depriving them of access to important benefits and critical services that rely on such data. We therefore ask you to **VETO SB 338**.

- **Virginia’s existing privacy law already safeguards location data.** Under the VCDPA, businesses may process or sell precise geolocation data *only with a consumer’s consent*.³ SB 338 would go significantly further by prohibiting the sale of precise geolocation data altogether, even where consumers have knowingly and voluntarily consented to such sales. This sweeping ban would unnecessarily disrupt data practices that allow companies to reach consumers with relevant content and advertising, enabling consumers to learn about goods and services through relevant marketing.
- **A majority of states follow Virginia’s current approach in regulating precise geolocation data.** Under the VCDPA, Virginia regulates precise geolocation data in the same manner as many other states’ consumer privacy laws. SB 338’s proposed ban on sales of precise geolocation data would diverge from such an approach, have a chilling effect on commerce, and deprive consumers of the ability to choose to learn about goods and services near to them through relevant marketing.
- **SB 338’s sweeping prohibition is overly broad and would create significant unintended consequences without being narrowly tailored to address specific harms.** By broadly restricting the availability of precise geolocation data, the bill could disrupt critical emergency alerts such as AMBER alerts, severe weather warnings, and other time sensitive public safety notifications that rely on timely access to third party location data to reach individuals in affected areas.⁴ The same overinclusive approach would also

¹ Virginia SB 338 (2026 Session), located [here](#) (hereinafter, “SB 338”).

² SB 338 § 59.1-578(A)(6).

³ Va. Code Ann. § 59.1-578(A)(5).

⁴ See, e.g., *Federation for Internet Alerts*, located [here](#) (describing a partnership between FIA and the National Center for Missing and Exploited Children (NCMEC) that leverages the same technology used to deliver advertising

undermine essential fraud prevention and identity protection services, which depend on responsibly shared location data by third parties to detect suspicious activity and protect consumers from financial loss. Although concerns about misuse of location data may warrant legislative attention, we urge you not to sign legislation that imposes a broad ban on sales to address those concerns. Instead, a more targeted framework focused on preventing specific harmful practices while preserving legitimate, reasonable uses that benefit consumers would better protect Virginians without weakening public safety communications and fraud prevention tools.

If enacted, SB 338's ban on precise geolocation data sales will remove choices from Virginia consumers, impede businesses from contacting Virginians with relevant advertising messages, and hinder the provision of emergency alerts and fraud prevention services. We therefore strongly urge you to **VETO SB 338**.

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Thank you in advance for your consideration of this letter.

Sincerely,

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